

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Philip A. Brimmer

Civil Action No.: 17-cv-00584-PAB-NYW Date: October 15, 2018
Courtroom Deputy: Sabrina Grimm Court Reporter: Janet Coppock

Parties:

SEAN SEELEY,

Plaintiff,

v.

HOME DEPOT USA, INC., a Delaware corporation,

Defendant.

Counsel:

Bryan Doran

Arthur Smith

COURTROOM MINUTES

JURY TRIAL – DAY 1

8:03 a.m. Court in session.

Court calls case. Appearances of counsel.

Also present and seated at Defendant's counsel table, legal assistant Delwin Hervey and Home Depot client representative Tess Simpkins.

Discussion regarding motion for reconsideration.

ORDERED: Defendant Home Depot U.S.A., Inc's Motion for Reconsideration of Order Denying Motion to Exclude Plaintiff's Treating Physician's (Dr. Jeffrey Arthur) Expert Opinion Testimony, Based on Plaintiff's Supplemental Disclosure Required by Court Order [Docket No. 60] [92] is GRANTED IN PART. Dr. Arthur is only permitted to testify about numbness, as discussed.

Discussion regarding scheduling and other preliminary matters.

ORDERED: Exhibit photographs related to the Home Depot cart are excluded, as discussed.

8:55 a.m. Court in recess.

9:13 a.m. Court in session.

9:13 a.m. Jurors present. Fifteen jurors seated in the jury box.

Court's preliminary remarks and introduction of staff, counsel, and parties.

Statement by the Court.

All jurors sworn for voir dire.

9:26 a.m. Voir dire by Court.

9:29 a.m. Court reads the statement of the case. Voir dire continues.

10:29 a.m. Court in recess.

10:47 a.m. Court in session.

Jurors present.

10:48 a.m. Voir dire by Mr. Doran.

10:58 a.m. Voir dire by Mr. Smith.

11:09 a.m. to 11:12 a.m. Bench conference.

Voir dire continues.

11:22 a.m. to 11:31 a.m. Bench conference.

Voir dire continues.

11:40 a.m. Counsel pass jurors for cause.

Jurors excused for cause:

- 1) 100346469
- 2) 100343386

Plaintiff's challenges:

- 1) 100370776
- 2) 100374729
- 3) 100364775

Defendant's challenges:

- 1) 100349142
- 2) 100357421
- 3) 100357323

11:46 p.m. Nine jurors selected to try the case:

- 1) 100346300
- 2) 100357483
- 3) 100362785
- 4) 100373142
- 5) 100343832
- 6) 100351963
- 7) 100353623
- 8) 100367854
- 9) 100334760

Jury panel sworn.

Court instructs jurors. Jurors excused.

Discussion regarding exhibits.

12:18 p.m. Court in recess.

1:34 p.m. Court in session.

1:36 p.m. Jurors present.

1:37 p.m. Plaintiff's opening statement by Mr. Doran.

1:56 p.m. Defendant's opening statement by Mr. Smith.

Plaintiff's witness, Heidi Seeley, sworn.

2:27 p.m. Direct examination of Ms. Seeley by Mr. Doran.

2:49 p.m. Cross examination of Ms. Seeley by Mr. Smith.

Reference to the June 26, 2017 deposition transcript of Ms. Seeley.

Defendant's Exhibits A41 and A4 (pg. 28) are admitted.

Court instructs jurors. Jurors excused.

Discussion regarding Defendant's demonstrative exhibit.

3:17 p.m. Court in recess.

3:33 p.m. Court in session.

3:35 p.m. Jurors present.

3:36 p.m. Redirect examination of Ms. Seeley by Mr. Doran.

Witness excused.

Plaintiff's witness, Dr. Jeffrey Arthur, sworn.

3:40 p.m. Direct examination of Dr. Arthur by Mr. Doran.

3:47 p.m. to 3:52 p.m. Bench conference.

Plaintiff's Exhibits 9 and 11 are admitted.

Plaintiff's Exhibit 21 for demonstrative purposes.

4:24 p.m. Cross examination of Dr. Arthur by Mr. Smith.

Plaintiff's Exhibits 14 and 15 are admitted.

5:01 p.m. to 5:02 p.m. Bench conference.

Witness excused.

Court instructs jurors. Jurors excused until October 16, 2018 at 8:30 a.m.

Discussion regarding proposed jury instructions and scheduling. Jury instruction conference will take place tomorrow evening.

5:16 p.m. Court in recess.

Trial continued.

Total in-court time: 7:05